

appliances to be carried by British ships according to the class in which they are arranged; and accordingly paragraph (b) of subsection (1) of the said section shall have effect as if there were therein inserted after the word "life-rafts" the words "line-throwing appliances." as to include power to make rules as to line-throwing appliances.

2. This Act shall be cited as the Merchant Shipping (Line-throwing Appliance) Act, 1928, and shall be construed as one with Part V. of the Merchant Shipping Act, 1894, and this Act and the Merchant Shipping Acts, 1894 to 1925, may be cited together as the Merchant Shipping Acts, 1894 to 1928. Short title and construction.

CHAPTER 41.

An Act to amend the Betting Act, 1853, to legalise the use of totalisators on certain race-courses, and to make further provision with regard to betting thereon. [3rd August 1928.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Nothing contained in the Betting Act, 1853, shall apply to any approved racecourse or any act done thereon on the days on which horse races but no other races take place thereon. Betting Act, 1853, not to apply to racecourses. 16 & 17 Vict. c. 119.

(2) Notwithstanding any rule of law or enactment to the contrary, it shall be lawful on any approved racecourse, and whether in a building or not,—

(a) for the Racecourse Betting Control Board and any person authorised by them to set up and keep a totalisator;

(b) for the Board and any person authorised by them to operate, in accordance with the provisions of this Act, and for the purpose of effecting betting transactions on horse races only, a totalisator on days when horse races but no other races take place on the racecourse;

(c) for any person to effect betting transactions by means of a totalisator lawfully operated:

Provided that nothing in this subsection shall be taken to imply that the Board, or any person authorised by the Board, are entitled, in the exercise of the powers conferred by this subsection, to infringe in any manner the rights of any other persons in or over any land or any right of property.

(3) For the purposes of this Act—

(a) the expression “totalisator” means the contrivance for betting known as the totalisator or pari-mutuel, or any other machine or instrument of betting of a like nature, whether mechanically operated or not;

(b) the expression “approved racecourse” means any ground used for the purpose of a racecourse for racing with horses, and any ground adjacent thereto, in respect of which ground, or adjacent ground, there is in force a certificate of approval issued under this Act.

Establish-
ment of
authority.

2.—(1) For the purposes of this Act there shall be established a Racecourse Betting Control Board (in this Act referred to as the Board) which shall consist of a chairman and eleven other members.

(2) The Board shall be a body corporate and shall have perpetual succession and a common seal, and may acquire and hold such land on or adjacent to a racecourse as may be reasonably required for the purpose of operating a totalisator thereon and such land as may be reasonably required for the offices of the Board, and may sell or lease any land held by them which is not required for the aforesaid purposes.

(3) The chairman shall be appointed by the Secretary of State for the Home Department.

(4) The other members of the Board shall be appointed as follows:—

By the Secretary of State for the Home Department	-	-	-	-	-	-	1
By the Secretary of State for Scotland	-						1
By the Minister of Agriculture and Fisheries							1
By the Chancellor of the Exchequer	-						1
By the Jockey Club	-	-	-	-	-	-	3
By the National Hunt Committee	-						2
By the Racecourse Association, Limited	-						1
By the Committee of Tattersalls	-						1

(5) Any member of the Board may be removed at any time from the Board by the body or person by whom he was appointed.

(6) The Board may pay to the chairman such salary as they may determine, and may pay to him and the other members of the Board any travelling and other expenses reasonably incurred by them as such members.

(7) The Board may appoint officers, servants, or agents, and prescribe their duties and fix their remuneration.

(8) The Board may regulate their own procedure and make standing orders governing the conduct of their business whether by themselves or committees of their number.

(9) The first meeting of the Board shall be convened by the chairman.

(10) No act or proceeding of the Board shall be questioned on account of any vacancy in their number or on account of the appointment of any member having been defective.

3. The Racecourse Betting Control Board—

Powers and
duties of
Board.

- (1) may for the purposes of this Act issue (subject to such conditions as they may impose) and at any time revoke certificates of approval in respect of racecourses and ground adjacent thereto;
- (2) shall make it a condition of the grant of a certificate of approval of any racecourse that the persons having the management of such racecourse shall provide a place, whether in a building or not, where bookmakers may carry on their business and to which the public may resort for the purpose of betting, and that the charge to a bookmaker and to any assistant accompanying him, for admission to an enclosure on the racecourse for the purpose of the bookmaker's business shall, in the case of a bookmaker, not exceed five times the amount, and in the case of an assistant not exceed the amount of the highest charge made to members of the public for admission to the enclosure;
- (3) shall distribute or cause to be distributed the whole of the moneys staked by means

of a totalisator on any race among the persons winning bets made by means of the totalisator on that race, after deducting or causing to be deducted such percentage of those moneys as the Board may from time to time determine either generally or with respect to any particular racecourse;

- (4) shall establish a fund known as the totalisator fund, into which shall be paid the percentage deducted as aforesaid of moneys staked by means of the totalisator, and any other moneys received by the Board;
- (5) may, for the purposes of this Act, borrow money upon the security of such fund or otherwise, and lend money for the purpose of setting up or operating totalisators in accordance with the provisions of this Act;
- (6) shall (subject to the payment out of the totalisator fund of all taxes, rates, charges, and working expenses, and to the retention of such sums as they think fit to meet contingencies, and to the payment out of the said fund of such sums as they think fit to charitable purposes) apply the moneys from time to time comprised in the totalisator fund in accordance with a scheme prepared by the Board and approved by the Secretary of State for purposes conducive to the improvement of breeds of horses or the sport of horse racing;
- (7) may do all such things as are incidental to the foregoing matters;
- (8) shall submit annually to the Secretary of State a report of their proceedings, together with an account, in such form as may be prescribed by the Secretary of State, of the moneys received and expended by them during the year, and such report and account shall be laid by the Secretary of State before both Houses of Parliament.

Prohibition
of betting
transactions

4.—(1) If any person has on any approved racecourse any betting transaction with a person apparently under the age of seventeen years, whether by means of a

totalisator or not, and whether he or the person apparently under the age of seventeen is acting on his own behalf or on behalf of another person, he shall be liable, on summary conviction, to a fine not exceeding fifty pounds. with persons under seventeen.

(2) It shall be a defence to a charge under this section to prove that the person apparently under the age of seventeen years was at the time of the alleged offence actually of or over that age.

(3) In the case of a betting transaction effected by means of a totalisator with a person apparently under the age of seventeen years, the transaction shall for the purposes of this section be deemed to have been had with the persons having the management of the approved racecourse upon which the totalisator was being operated and not with any other person.

5.—(1) This Act may be cited as the Racecourse Betting Act, 1928. Short title and extent.

(2) This Act shall not extend to Northern Ireland.

CHAPTER 42.

An Act to amend the law with respect to offences against persons under the age of sixteen.

[3rd August 1928.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. Section two of the Criminal Law Amendment Act, 1922, shall be read as if for the period "nine months" therein specified as the limit of time mentioned in the second proviso to section five of the Criminal Law Amendment Act, 1885, as amended by section twenty-seven of the Prevention of Cruelty to Children Act, 1904, there was substituted the period of twelve months. Period of limitation under 12 & 13 Geo. 5. c. 56. s. 2 extended. 48 & 49 Vict. c. 69. 4 Edw. 7. c. 15.